

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
RAYMOND CHEVANNES,

Index No.

Purchased 7-26-18

Plaintiff

Plaintiff designates Bronx
County as the place of trial

- against -

The basis of the venue is
where the tort arose

**THE CITY OF NEW YORK,
POLICE OFFICER NICHOLAS SANTOMERO
(shield # unknown), and POLICE OFFICER
EDWIN VEGA (shield # unknown),**

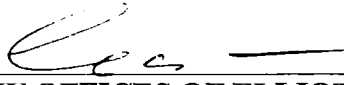
SUMMONS

Defendants.
-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
July 26, 2018


THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, New York 10022
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****RAYMOND CHEVANNES****Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK,
POLICE OFFICER NICHOLAS SANTOMERO
(shield # unknown), and POLICE OFFICER
EDWIN VEGA (shield # unknown),****Defendants.**

Plaintiff RAYMOND CHEVANNES, by his attorneys THE LAW OFFICES OF
ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of Defendants, respectfully
shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff RAYMOND CHEVANNES was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendants, POLICE OFFICER NICHOLAS SANTOMERO (shield # unknown) ("P.O. SANTOMERO") and POLICE OFFICER

EDWIN VEGA (shield # unknown) ("P.O. VEGA), were and still are police officers employed by Defendants.

BACKGROUND

5. On May 10, 2017, at approximately 6:30 p.m., in the vicinity of 217th Street and Laconia Avenue in Bronx County, without just cause or provocation, Defendants, including P.O. SANTOMERO and P.O. VEGA, approached Plaintiff, grabbed Plaintiff and threw Plaintiff to the ground. Next, Defendants violently handcuffed Plaintiff and struck Plaintiff about Plaintiff's body. Defendants, including P.O. SANTOMERO and P.O. VEGA, intentionally and falsely accused Plaintiff of having committed the crime of Criminal Possession of a Controlled Substance in the 7th Degree and related charges.
6. On or about May 11, 2017, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff commenced.
7. Plaintiff remained in custody until he was released on or about May 12, 2017.
8. Plaintiff has to defend against false charge.

PROCEDURAL POSTURE

9. On September 27, 2017, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised Defendants of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable. On October 26, 2017, the Court granted Plaintiff's application to file a Late Notice of Claim.
10. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.

11. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
12. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

13. Paragraphs 1-12 are incorporated by reference as fully set forth herein.
14. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 5-7, and Plaintiff did not consent to that arrest or confinement.
15. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.
16. As a result of being falsely imprisoned by Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION

17. Paragraphs 1-16 are incorporated by reference as though fully set forth herein.
18. In arresting Plaintiff, Defendants acted with malice. Defendants lacked probable cause to arrest Plaintiff.
19. As a result of being maliciously prosecuted by Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for Plaintiff's safety.

THIRD CAUSE OF ACTION: BATTERY

20. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.
21. When Defendants, including P.O. SANTOMERO and P.O. VEGA, violently grabbed Plaintiff, threw him to the ground and struck Plaintiff about Plaintiff's body, they subjected Plaintiff to a harmful or offensive bodily contact. Defendants intended to make that contact without the consent of Plaintiff.
22. As a result of being battered by Defendants, Plaintiff sustained multiple injuries, including but not limited to the following: (a) a complete tear of the right rotator cuff; (b) broken ribs; (c) arm and back pain. Plaintiff also sustained loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: ASSAULT

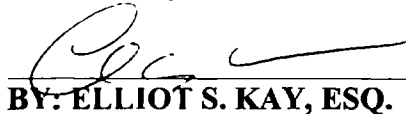
23. Paragraphs 1-22 are incorporated by reference as though fully set forth herein.
- Defendants, including P.O. SANTOMERO and P.O. VEGA, acting as the agents, servants and employees of defendant CITY, approached Plaintiff and immediately grabbed Plaintiff, threw him to the ground and struck Plaintiff about Plaintiff's body. The actions of Defendants, including P.O. SANTOMERO and P.O. VEGA, placed Plaintiff in apprehension of imminent harmful or offensive contact.
24. As a result of being assaulted by Defendants, Plaintiff sustained multiple injuries, including but not limited to the following: (a) a complete tear of the right rotator cuff; (b) broken ribs; (c) arm and back pain. Plaintiff also sustained loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
July 26, 2018

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, NY 10022
212-939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
RAYMOND CHEVANNES,

Index No.

Purchased: 7.26.18

Plaintiff

-against-

**THE CITY OF NEW YORK,
POLICE OFFICER NICHOLAS SANTOMERO
(shield # unknown), and POLICE OFFICER
EDWIN VEGA (shield # unknown),**

Defendants

-----X
I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
July 26, 2018



ELLIOT S. KAY